

HOUSE No. 2796

The Commonwealth of Massachusetts

PRESENTED BY:

Mark J. Cusack

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to public safety personnel.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Mark J. Cusack</i>	<i>5th Norfolk</i>	<i>1/16/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>1/30/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>3/12/2025</i>
<i>Adrienne Pusateri Ramos</i>	<i>14th Essex</i>	<i>3/12/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>3/12/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>3/25/2025</i>
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>3/25/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>4/15/2025</i>
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	<i>5/15/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>5/15/2025</i>

HOUSE No. 2796

By Representative Cusack of Braintree, a petition (accompanied by bill, House, No. 2796) of Mark J. Cusack and Joanne M. Comerford relative to post-retirement earnings for certain public safety retirees. Public Service.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2488 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to public safety personnel.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 91 of Chapter 32 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by inserting after subsection (e) the following subsections:-

3 (f) Notwithstanding the provisions of paragraphs (a) to (d), inclusive, any individual who
4 retires from Group IV, who had been employed as either a municipal police officer or firefighter,
5 of any rank, may provide consulting services to one or more municipalities, either individually as
6 a sole proprietor or retained by a corporation or other business entity, for such period of time and
7 for such mutually agreed upon compensation as the municipality deems necessary and
8 appropriate provided such contractual relationship does not involve a conflict of interest in
9 violation of Chapter 268A of the General Laws.

10 (g) The restrictions against post-retirement earnings contained in this section shall not
11 apply to a retired member of Group IV that subsequently is selected to serve as either the
12 Secretary of Public Safety and Security, the Undersecretary of Public Safety and Security, or is
13 employed in any capacity for the Municipal Police Training Committee or the Department of
14 Fire Services Academy.